CIC AND SIC

CONSTITUTIONAL RIGHT, RTI IDENTITY → PROACTIVE DISCLOSURE AND THE → FOUR DISTINCT ROUTES: REQUEST → CIC AND SIC COMPOSITION → TENURE, SERVICE CONDITIONS AND → SECTION 18 INQUIRY AND

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure: the grey E card is optional enrichment only and never repairs missing core content.

◆ PRIMARY CORE FLOW ◆ SUBORDINATE EXTRA ◆ APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • source generation g6 and all prior artifacts unchanged

00 CONSTITUTIONAL RIGHT, RTI IDENTITY AND PUBLIC-AUTHORITY TEST

STAGE 00

CONSTITUTIONAL RIGHT, RTI IDENTITY AND PUBLIC-AUTHORITY TEST · ARTICLE 19(1)(A) → CONSTITUTIONAL RIGHT TO KNOW. · RTI ACT, 2005 · STATUTORY ACCESS AND ENFORCEMENT MACHINERY. · INFORMATION EXISTING MATERIAL HELD BY OR CONTROLLED BY A · PUBLIC AUTHORITY · SUBSTANTIAL FINANCE.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 19(1)(a) → constitutional right to know.
- RTI ACT, 2005 → statutory access and enforcement machinery.

POWER / PROCEDURE

- INFORMATION existing material held by or controlled by a public authority, including accessible private-body material.
- PUBLIC AUTHORITY: Constitution

CHECK / LIMIT

- substantial finance.
- RTI gives covered records, not compelled creation of answers or opinions.

FEDERAL / RIGHTS IMPACT

- MUST REMEMBER: Keep the constitutional Article 19(1)(a) right-to-know root distinct from the statutory CIC/SIC machinery created by the RTI Act, 2005.
- ARTICLE 19(1)(a) → constitutional right to know.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MUST REMEMBER: Keep the constitutional Article 19(1)(a) right-to-know root distinct from the statutory CIC/SIC machinery created by the RTI Act, 2005.

01 PROACTIVE DISCLOSURE AND THE REQUEST ROUTE

STAGE 01

PROACTIVE DISCLOSURE AND THE REQUEST ROUTE · SECTION 4 RECORD MANAGEMENT + ORGANISATION, POWERS, NORMS, BUDGETS · MAXIMUM PROACTIVE DISCLOSURE · MINIMUM RESORT TO APPLICATIONS. · SECTIONS 5-7 · REQUEST WITHOUT REASONS · ORDINARY 30 DAYS · LIFE/LIBERTY 48 HOURS.

SECTION 4 record management + organisation, powers, norms, budgets and decision reasons → maximum proactive disclosure → minimum resort to applications. → SECTIONS 5-7 → PIO/APIO → request without reasons → ordinary 30 days → life/liberty 48 hours.

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 4 record management + organisation, powers, norms, budgets and decision reasons
- maximum proactive disclosure → minimum resort to applications.

POWER / PROCEDURE

- SECTIONS 5-7
- PIO/APIO → request without reasons → ordinary 30 days

CHECK / LIMIT

- life/liberty 48 hours.
- Transfer under section 6(3): as soon as practicable, not later than five days.

FEDERAL / RIGHTS IMPACT

- TRAP additional clocks apply to APIO and third-party routes.
- SECTION 4 record management + organisation, powers, norms, budgets and decision reasons

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP additional clocks apply to APIO and third-party routes.

02 FOUR DISTINCT ROUTES: REQUEST, COMPLAINT AND TWO APPEALS

STAGE 02

FOUR DISTINCT ROUTES · REQUEST, COMPLAINT AND TWO APPEALS · PIO DECISION. · FIRST APPEAL · SENIOR DEPARTMENTAL OFFICER. · SECOND APPEAL · CIC/SIC: PIO BEARS DENIAL BURDEN; DECISION BINDING UNDER SECTION · SECTION 18 COMPLAINT

REQUEST → PIO decision.

FIRST APPEAL → senior departmental officer. → SECOND APPEAL → CIC/SIC: PIO bears denial burden; decision binding under section 19(7). → SECTION 18 COMPLAINT → access-system failures and inquiry powers.

CONSTITUTIONAL BASIS / ARTICLE

- REQUEST → PIO decision.
- FIRST APPEAL → senior departmental officer.

POWER / PROCEDURE

- SECOND APPEAL → CIC/SIC: PIO bears denial burden; decision binding under section 19(7).
- SECTION 18 COMPLAINT → access-system failures and inquiry powers.

CHECK / LIMIT

- CHIEF INFORMATION COMMISSIONER V. STATE OF MANIPUR (2011) complaint is not an automatic substitute for the appellate disclosure remedy.
- REQUEST → PIO decision.

FEDERAL / RIGHTS IMPACT

- FIRST APPEAL → senior departmental officer.
- SECOND APPEAL → CIC/SIC: PIO bears denial burden; decision binding under section 19(7).

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CHIEF INFORMATION COMMISSIONER V. STATE OF MANIPUR (2011) complaint is not an automatic substitute for the appellate disclosure remedy.

03 CIC AND SIC COMPOSITION AND APPOINTMENT

STAGE 03

CIC AND SIC COMPOSITION AND APPOINTMENT · CHIEF + UP TO TEN INFORMATION COMMISSIONERS. · PRESIDENT APPOINTS AFTER PM + LOK SABHA LOP + · STATE CHIEF + UP TO TEN STATE INFORMATION COMMISSIONERS. · GOVERNOR APPOINTS AFTER CM + ASSEMBLY LOP + NOMINATED · ELIGIBILITY EMINENCE ACROSS LISTED FIELDS; CONFLICT DISQUALIFICATIONS APPLY. · CURRENT CENTRAL ROSTER · 5 SEPTEMBER 2026

CONSTITUTIONAL BASIS / ARTICLE

- CIC: Chief + up to ten Information Commissioners.
- President appoints after PM + Lok Sabha LoP + nominated Union Cabinet Minister committee.
- SIC: State Chief + up to ten State Information Commissioners.
- Governor appoints after CM + Assembly LoP + nominated State Cabinet Minister committee.
- ELIGIBILITY eminence across listed fields; conflict disqualifications apply.

POWER / PROCEDURE

- CURRENT CENTRAL ROSTER: 5 SEPTEMBER 2026
- Chief: Raj Kumar Goyal.
- ICs: Anandi Ramalingam
- Vinod Kumar Tiwari
- Surendra Singh Meena

CHECK / LIMIT

- Ashutosh Chaturvedi
- Swagat Das
- Sudha Rani Relangi
- P. R. Ramesh
- Khushwant Singh Sethi

FEDERAL / RIGHTS IMPACT

- Jaya Varma Sinha
- Sanjeev Kumar Jindal.
- SIC incumbency is State-specific; never infer one national State roster.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SIC incumbency is State-specific; never infer one national State roster.

04 TENURE, SERVICE CONDITIONS AND REMOVAL AFTER 2019

STAGE 04

TENURE, SERVICE CONDITIONS AND REMOVAL AFTER 2019 · 2019 AMENDMENT · ACT-FIXED TERM AND ELECTION-COMMISSION PAY LINKAGE REMOVED · CENTRAL GOVERNMENT PRESCRIBES TENURE, PAY AND SERVICE CONDITIONS. · 2019 SERVICE-CONDITION RULES · THREE-YEAR TERM; AGE CEILING REMAINS 65. · PROVED MISBEHAVIOUR/INCAPACITY · SUPREME COURT INQUIRY/REPORT; DIRECT STATUTORY GROUNDS REMAIN SEPARATE.

CONSTITUTIONAL BASIS / ARTICLE

- 2019 AMENDMENT
- Act-fixed term and Election-Commission pay linkage removed

POWER / PROCEDURE

- Central Government prescribes tenure, pay and service conditions.
- 2019 SERVICE-CONDITION RULES: three-year term; age ceiling remains 65.

CHECK / LIMIT

- CIC: President
- SIC: Governor.

FEDERAL / RIGHTS IMPACT

- Proved misbehaviour/incapacity → Supreme Court inquiry/report; direct statutory grounds remain separate.
- 2019 AMENDMENT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Proved misbehaviour/incapacity → Supreme Court inquiry/report; direct statutory grounds remain separate.

05 SECTION 18 INQUIRY AND EVIDENCE POWERS

STAGE 05

SECTION 18 INQUIRY AND EVIDENCE POWERS · COMPLAINT TRIGGERS NO PIO · INABILITY TO APPLY · UNREASONABLE FEE · INCOMPLETE/FALSE/MISLEADING INFORMATION. · INQUIRY POWERS SUMMONS · PUBLIC RECORDS · COMMISSION MAY INSPECT COVERED RECORDS NOTWITHSTANDING ANOTHER OBJECTION.

COMPLAINT TRIGGERS no PIO → inability to apply → unreasonable fee → incomplete/false/misleading information. → INQUIRY POWERS summons

CONSTITUTIONAL BASIS / ARTICLE

- COMPLAINT TRIGGERS no PIO
- inability to apply
- unreasonable fee

POWER / PROCEDURE

- incomplete/false/misleading information.
- INQUIRY POWERS summons
- public records

CHECK / LIMIT

- Commission may inspect covered records notwithstanding another objection.
- LIMIT evidence powers do not themselves supply the section 19 disclosure remedy.
- CLOSE DISTINCTION: Separate requests, first appeals, second appeals and section 18 complaints

FEDERAL / RIGHTS IMPACT

- a Commission cannot be treated as a record-creation agency.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: a Commission cannot be treated as a record-creation agency.

06 APPEAL, COMPLIANCE, COMPENSATION AND PENALTY

STAGE 06

APPEAL, COMPLIANCE, COMPENSATION AND PENALTY · SECTION 19 APPEAL BINDING DECISION + DISCLOSURE/COMPLIANCE DIRECTIONS + · SECTION 20 PERSONAL PIO PENALTY · RS 250 PER DAY, MAXIMUM RS 25,000, AFTER HEARING · DISCIPLINARY RECOMMENDATION REMAINS DISTINCT. · BOUNDARY BINDING DOES NOT EXCLUDE ARTICLE 226/32 JUDICIAL REVIEW.

SECTION 19 APPEAL binding decision + disclosure/compliance directions + compensation by public authority.

SECTION 20 personal PIO penalty: Rs 250 per day, maximum Rs 25,000, after hearing and → Disciplinary recommendation remains distinct. → BOUNDARY binding does not exclude Article 226/32 judicial review.

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 19 APPEAL binding decision + disclosure/compliance directions + compensation by public authority.
- SECTION 20 personal PIO penalty: Rs 250 per day, maximum Rs 25,000, after hearing and statutory grounds.

POWER / PROCEDURE

- Disciplinary recommendation remains distinct.
- BOUNDARY binding does not exclude Article 226/32 judicial review.

CHECK / LIMIT

- SECTION 19 APPEAL binding decision + disclosure/compliance directions + compensation by public authority.
- SECTION 20 personal PIO penalty: Rs 250 per day, maximum Rs 25,000, after hearing and statutory grounds.

FEDERAL / RIGHTS IMPACT

- Disciplinary recommendation remains distinct.
- BOUNDARY binding does not exclude Article 226/32 judicial review.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: BOUNDARY binding does not exclude Article 226/32 judicial review.

07 EXEMPTIONS, OVERRIDE, SEVERABILITY AND THIRD-PARTY PROCESS

STAGE 07

EXEMPTIONS, OVERRIDE, SEVERABILITY AND THIRD-PARTY PROCESS · SECTION 8(1) · ENUMERATED PROTECTED INTERESTS. · SECTION 8(2) · PUBLIC-INTEREST OVERRIDE OVER OFFICIAL SECRETS ACT AND SECTION 8(1) · SECTION 8(3) · TWENTY-YEAR RULE WITH SPECIFIED EXCEPTIONS. · SECTION 9

SECTION 8(1): enumerated protected interests. → SECTION 8(2): public-interest override over Official Secrets Act and section 8(1) harms. → SECTION 8(3): twenty-year rule with specified exceptions. → SECTION 9: copyright limit. → SECTION 10: sever non-exempt material.

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 8(1): enumerated protected interests.
- SECTION 8(2): public-interest override over Official Secrets Act and section 8(1) harms.

POWER / PROCEDURE

- SECTION 8(3): twenty-year rule with specified exceptions.
- SECTION 9: copyright limit.

CHECK / LIMIT

- SECTION 10: sever non-exempt material.
- SECTION 11: consultation, not independent exemption or third-party veto.

FEDERAL / RIGHTS IMPACT

- SECTION 8(1): enumerated protected interests.
- SECTION 8(2): public-interest override over Official Secrets Act and section 8(1) harms.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SECTION 11: consultation, not independent exemption or third-party veto.

08 SECURITY ORGANISATIONS AND STATUTORY PRIORITY

STAGE 08

SECURITY ORGANISATIONS AND STATUTORY PRIORITY · SECTION 24 · SECOND SCHEDULE INTELLIGENCE/SECURITY BODIES GENERALLY EXEMPT. · CORRUPTION AND HUMAN-RIGHTS ALLEGATIONS REMAIN ROUTES; HR DISCLOSURE NEEDS · SECTION 22 · RTI ACT OVERRIDES INCONSISTENT SECRECY LAW · TRAP SECURITY EXEMPTION IS NOT ABSOLUTE IMMUNITY FROM CORRUPTION

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 24
- Second Schedule intelligence/security bodies generally exempt.

POWER / PROCEDURE

- PROVISOS: corruption and human-rights allegations remain routes; HR disclosure needs CIC approval and uses special time.
- SECTION 22: RTI Act overrides inconsistent secrecy law.

CHECK / LIMIT

- TRAP security exemption is not absolute immunity from corruption or human-rights information.
- SECTION 24

FEDERAL / RIGHTS IMPACT

- Second Schedule intelligence/security bodies generally exempt.
- PROVISOS: corruption and human-rights allegations remain routes; HR disclosure needs CIC approval and uses special time.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP security exemption is not absolute immunity from corruption or human-rights information.

09 PERSONAL INFORMATION AFTER THE DPDP SUBSTITUTION

STAGE 09

PERSONAL INFORMATION AFTER THE DPDP SUBSTITUTION · DPDP ACT SECTION 44(3), EFFECTIVE 13 NOVEMBER 2025 · SECTION 8(1)(J) · INFORMATION WHICH RELATES TO PERSONAL INFORMATION. · HISTORICAL CLAUSE-SPECIFIC TESTS ARE NO LONGER CURRENT TEXT. · SURVIVING ANALYSIS SECTION 8(2) · OTHER STATUTES · ARTICLE 19(1)(A) AND PRIVACY PROPORTIONALITY.

DPDP ACT section 44(3): effective 13 November 2025 → section 8(1)(j): information which relates to personal information. → Historical clause-specific tests are no longer current text. → SURVIVING ANALYSIS section 8(2) → other statutes

CONSTITUTIONAL BASIS / ARTICLE

- DPDP ACT section 44(3), effective 13 November 2025
- section 8(1)(j): information which relates to personal information.
- Historical clause-specific tests are no longer current text.

POWER / PROCEDURE

- SURVIVING ANALYSIS section 8(2)
- other statutes
- Article 19(1)(a) and privacy proportionality.

CHECK / LIMIT

- LIMIT do not invent a stay, Constitution Bench reference or final judgment.
- CURRENT-LAW CONTROL: 5 SEPTEMBER 2026
- Section 44(3) substitution has operated since 13 November 2025.

FEDERAL / RIGHTS IMPACT

- The shorter clause is in force; section 8(2), severability, appeal and judicial review survive. No final constitutional merits ruling is asserted.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The shorter clause is in force; section 8(2), severability, appeal and judicial review survive. No final constitutional merits ruling is asserted.

10 CASE LAW AND PUBLIC-AUTHORITY BOUNDARIES

STAGE 10

CASE LAW AND PUBLIC-AUTHORITY BOUNDARIES · STATE OF U.P. V. RAJ NARAIN (1975) · RIGHT TO KNOW PUBLIC ACTS. · S.P. GUPTA V. UNION OF INDIA (1981) · OPEN GOVERNMENT. · CBSE V. ADITYA BANDOPADHYAY (2011) · EXISTING RECORDS, NOT COMPELLED NEW OPINIONS. · CHIEF INFORMATION COMMISSIONER V. STATE OF MANIPUR (2011)

STATE OF U.P. V. RAJ NARAIN (1975): right to know public acts.

S.P. GUPTA V. UNION OF INDIA (1981): open government. → CBSE v. Aditya Bandopadhyay (2011): existing records, not compelled new opinions. → CHIEF INFORMATION COMMISSIONER V. STATE OF MANIPUR (2011): complaint route != disclosure appeal.

CONSTITUTIONAL BASIS / ARTICLE

- STATE OF U.P. V. RAJ NARAIN (1975): right to know public acts.
- S.P. GUPTA V. UNION OF INDIA (1981): open government.

POWER / PROCEDURE

- CBSE v. Aditya Bandopadhyay (2011): existing records, not compelled new opinions
- CHIEF INFORMATION COMMISSIONER V. STATE OF MANIPUR (2011): complaint route != disclosure appeal.

CHECK / LIMIT

- RBI v. Jayantilal N. Mistry (2015): no blanket regulatory fiduciary shield.
- SUBHASH CHANDRA AGARWAL (2019): CJI office is public authority, subject to exemptions/balancing.

FEDERAL / RIGHTS IMPACT

- ANJALI BHARDWAJ V. UNION OF INDIA (2019): timely transparent appointments.
- Political-party CIC ruling is not a final Supreme Court holding.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Political-party CIC ruling is not a final Supreme Court holding.

11 INDEPENDENCE, REFORM, PYQ AND QUALIFIED VERDICT

STAGE 11

INDEPENDENCE, REFORM, PYQ AND QUALIFIED VERDICT · BINDING APPEAL · COMPLIANCE DIRECTIONS. · PERSONAL PENALTY. · WEAK RECORDS · UNDERUSED PENALTIES · SERVICE-CONDITION DEPENDENCE. · FIXED TRANSPARENT APPOINTMENTS

STRENGTHS: binding appeal → compliance directions → personal penalty. → LIMITS: vacancies → weak records

CONSTITUTIONAL BASIS / ARTICLE

- STRENGTHS: binding appeal
- compliance directions
- personal penalty.
- LIMITS: vacancies

POWER / PROCEDURE

- weak records
- underused penalties
- service-condition dependence.
- REFORM: fixed transparent appointments

CHECK / LIMIT

- protected conditions
- digital interoperability proactive disclosure
- reasoned penalty practice.
- PYQ 2020: amendment and autonomy, 10 marks, 150 words.

FEDERAL / RIGHTS IMPACT

- VERDICT: legal teeth require independent, staffed and accessible commissions.
- LEGAL/SOURCE LIMIT: The 13 November 2025 DPDP substitution is operative but section 8(2), section 10 and judicial review remain
- Raj Kumar Goyal heads the CIC.

MECHANISM / VERDICT — VERDICT: legal teeth require independent, staffed and accessible commissions.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: legal teeth require independent, staffed and accessible commissions.

E SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

EXTRA

OPTIONAL ADVANCED ENRICHMENT · INSTITUTIONAL DESIGN REFINEMENTS · [ANALYSIS] BINDING APPELLATE POWER AND EFFECTIVE ENFORCEMENT ARE DISTINCT · VACANCIES, WEAK · RECORDS AND NON-COMPLIANCE CAN DEFEAT A LEGALLY BINDING ORDER · [ANALYSIS] THE PUBLIC-AUTHORITY TEST SHOULD BE APPLIED THROUGH LEGAL · GOVERNMENTAL CONTROL AND SUBSTANTIAL-FINANCING EVIDENCE RATHER THAN LABELS ALONE · [LIMIT] THE CIC POLITICAL-PARTY RULING IS INSTITUTIONALLY IMPORTANT BUT

OPTIONAL DOCTRINE / CASE

- Institutional design refinements
- [ANALYSIS] Binding appellate power and effective enforcement are distinct: vacancies, weak
- records and non-compliance can defeat a legally binding order in practice.
- [ANALYSIS] The public-authority test should be applied through legal creation.

ADVANCED LIMIT

- governmental control and substantial-financing evidence rather than labels alone.
- [LIMIT] The CIC political-party ruling is institutionally important but is not a
- final Supreme Court holding declaring every political party a public authority.
- [LIMIT] Privacy analysis after the amended section 8(1)(j) must retain section 8(2).

COMPARATIVE NUANCE

- severability, purpose-specific statutes and constitutional proportionality without inventing a judicial result.
- Institutional design refinements - [ANALYSIS] Binding appellate power and effective enforcement are distinct:
- vacancies, weak records and non-compliance can defeat a legally binding order in practice.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels